



REQUEST FOR QUALIFICATIONS

RFQ No. 22-01Q

ARCHITECTURAL/ENGINEERING DESIGN SERVICES FOR MATANZAS HIGH SCHOOL ADDITION & RENOVATIONS

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2nd Floor – Finance
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LEGAL NOTICE

Flagler County School Board

Request for Qualifications (RFQ) No. 22-01Q

Architectural/Engineering Design Services for Matanzas High School Addition & Renovations

Pursuant to Florida Statute 287.055, Consultants' Competitive Negotiations Act (CCNA) and State Requirements for Educational Facilities (SREF), Flagler County School Board is seeking submittals from qualified Architectural firms to assist in include the programming, design, bidding support, construction administration, and closeout services for the addition and renovations at Matanzas High School.

Sealed submittals will be accepted until November 16, 2021 at 12:00pm, local time. Submittals must be received by the Purchasing Department, Flagler County School Board, 1769 East Moody Blvd., Bldg. #2, Bunnell, FL 32110.

Interested parties can obtain a copy of the RFQ documents at the Flagler County School District purchasing website at <https://flaglerschools.com/departments/finance/purchasing>.

SCHEDULE OF EVENTS

Date	Description
October 20, 2021	Legal Advertisement
October 27, 2021	Legal Advertisement
November 3, 2021	Legal Advertisement
November 5, 2021	Question Deadline - due by 4:00pm
November 10, 2021	Addendum Released (if necessary)
November 16, 2021	Submittal Due Date - Due by 12:00pm Deliver to: Flagler County Schools Attn: Purchasing Department 1769 E. Moody Blvd, Bldg 2 - Second Floor Bunnell, FL 32110
December 1, 2021	Selection Committee Meeting - Shortlisting Location: Flagler County Schools 1769 E. Moody Blvd, Bldg. 2 Third Floor Conference Room Bunnell, FL 32110 Time: Beginning at 10:30am
December 2, 2021	Shortlisted Firms Notified
December 7, 2021	Site Visit with Shortlisted Firms Location: Matanzas High School 3535 Pirate Nation Way Palm Coast, FL 32137 Time: Beginning at 8:30am
December 15, 2021	Formal Presentations Location: Flagler County Schools 1769 E. Moody Blvd, Bldg. 2 Third Floor Conference Room Bunnell, FL 32110 Time: Beginning at 9:00am
December 15, 2021	Selection Committee Meeting - Final Ranking Location: Flagler County Schools 1769 E. Moody Blvd, Bldg. 2 Third Floor Conference Room Bunnell, FL 32110 Time: Following Formal Presentations (TBD at Shortlist Meeting 12/1/2021)
December 17, 2021	Notice of Intended Decision
January 18, 2022	Board Approval of Top Ranked Firm

SECTION 1 – INSTRUCTIONS TO RESPONDENTS

Designated Purchasing Representative

Kris Collora, Coordinator of Purchasing for Flagler Schools, is the designated Purchasing Representative and will be responsible for facilitating the entire evaluation process. Ms. Collora shall be the sole point of contact for all Respondents.

Cone of Silence

Selection committee members, school board members, and school board personnel (except the Purchasing Services representative) are **not to be contacted** prior to the School Board's decision to approve or reject the final recommendation presented to it by the Superintendent or his designee. At the discretion of Flagler County Schools, failure to comply with this requirement will be grounds for disqualification.

Specifically, this **No-Contact Period** shall commence upon issuance of the Request for Qualifications and continue through and include the date the Flagler County School Board makes its determination to approve or reject the final recommendations.

Failure to meet any of these requirements may disqualify a Respondent from consideration.

Questions and Request for Clarifications

Respondents shall submit any questions and/or requests for clarifications via email to: purchasing@flaglerschools.com by the due date and time as indicated in the Schedule of Events.

Questions received after the deadline will not be considered. Inquiries must reference the RFQ number in the subject line of the e-mail. Those interpretations which may affect the eventual outcome of this solicitation will be posted on the Flagler County Schools Purchasing web page for all prospective Respondents to view. Only the interpretation or correction so given by the Purchasing representative, in writing, shall be binding and prospective Respondents are advised that no other source is authorized to give information concerning, or to explain or interpret the RFQ and the selection process. All such interpretations and supplemental instructions will be in the form of written Addenda to the RFQ.

Right of Amendment of RFQ

Flagler County School Board reserves the right to amend this RFQ via Addenda for any reason prior to the Due Date, and submittal by Respondent shall be deemed to acknowledge all amendments which may have been issued.

Evaluation and Selection Process

[Florida Statute 287.055](#) "The Consultants' Competitive Negotiation Act" will be followed to secure the required firms. The Purchasing representative listed on the face page will be responsible for the selection process and will be the sole point of contact for all Respondents. In addition to the materials provided in the written responses to this RFQ, the Flagler County School Board may utilize site visits or may request additional material, information, presentations, and/or references from the Respondent(s) submitting qualifications packages.

Submittal Instructions

All submittals must be received by the due date and time as indicated. Respondent will be responsible for its timely delivery to Flagler County Schools, Purchasing Department, 1769 E. Moody Blvd., Bldg. #2, Second Floor - Finance, Bunnell, FL 32110. It is the Respondent's sole responsibility to ensure that its submittal is delivered at the proper time and to the proper place of the submittal opening. Submittals which for any reason are not so delivered will not be considered and will be returned to Respondent at the Respondent's expense.

Submittals must be sealed and clearly labeled on the outside of the package using the label provided in this RFQ. Once accepted, all original submittals and any copies of submittals become the sole property of the School Board and may be retained by the School Board or disposed of in any manner the School Board deems appropriate. All submittals shall be signed by an officer or employee having authority to legally bind Respondent. Respondents should become familiar with

any local conditions which may, in any manner, affect the services required. Respondent is required to carefully examine the RFQ terms and to become thoroughly familiar with any and all conditions and requirements that may in any manner affect the work to be performed under the resulting contract. No additional allowance will be made due to lack of knowledge of these conditions. Submittals not conforming to the instructions provided herein may be subject to disqualification at the sole discretion of the School Board. Any submittal may be withdrawn prior to the date and time the submittals are due. Any submittal not withdrawn will constitute an irrevocable offer, for a period of 90 days, to provide the School Board with the services specified in the submittal.

Submittal Preparation Cost

The costs of developing submittals are entirely the responsibility of Respondent and shall not be charged in any manner to FCSB. This includes, but is not limited to, the direct cost of personnel assigned to prepare Respondent's response to the RFQ and any out-of-pocket expenses (including, but not limited to, travel, accommodation, supplies) incurred by Respondent in preparing the response to the RFQ.

Withdrawal and Resubmission/Modification of Submittals:

Respondent may withdraw its submittal prior to RFQ Submittal due date and time specified the schedule this RFQ by submitting an email notification of its withdrawal by Respondent or agent, sent to the Purchasing Representative stated in Section 1. Thereafter, Respondent may submit a new submittal prior to such submission time specified in Schedule of Events. Modification offered in any other manner, oral or written, will not be considered. Submittals cannot be changed or withdrawn after the designated time for receipt.

Right of Withdrawal of RFQ

Flagler County School Board reserves the right to withdraw this RFQ for any reason prior to the execution of an Agreement.

Review and Evaluation

The review and evaluation of the Submittals shall be conducted by a Selection Committee and shall be conducted in accordance with the criteria as set forth in this Request for Qualifications (RFQ). All decisions of the Flagler County School Board shall be considered final.

Posting of Scoring / Recommendation

RFQ scoring tabulations with recommended awards will be posted for review on the Flagler County Schools website at www.FlaglerSchools.com. Failure to file a protest within the time prescribed in Section 120.57(3) b, Florida Statutes, shall constitute a waiver of proceedings under Chapter 120, Florida Statutes.

Any person who is adversely affected by a decision of the FCSB concerning this decision shall file a Notice of Intent to Protest in writing within 72 hours after the notice of decision is posted, excluding Saturdays, Sundays, and legal holidays. Protest procedures can be provided by request.

The Notice of Intent to Protest and formal written protest shall be filed with the Director of Finance, 1769 E. Moody Blvd., Bldg. #2, Bunnell, FL 32110. The formal written protest shall state with particularity the facts and law upon which the protest is based. Failure to file a protest or failure to post the bond or other security within the time frames or in the manner described above shall constitute a waiver of proceedings under Chapter 120, Florida Statutes.

Debriefing

A debriefing may be held after contract award at the request of any Respondent for the purpose of receiving specific information concerning the evaluation. The discussion will be based primarily on the technical and business and cost evaluations of Respondent's submittal. A debriefing is not the forum to challenge the RFQ specifications or requirements.

Complete Document and Agreement

This document, its issued addenda, and any subsequent Contract, Agreement and addenda, shall be construed as the complete and binding documents, and Respondent/s shall not rely on any verbal representations from FCSB or its representatives as taking precedence over the written documents as outlined above.

SECTION 2 – GENERAL TERMS AND CONDITIONS

1. Agreement:

A contract or agreement will be released, after award, for any work to be performed as a result of this RFQ. This RFQ, the respondent's submittal, negotiated terms, and the contract will constitute the complete agreement between Respondent and FCSB.

2. Non-Exclusive Agreement:

This RFQ does not establish an exclusive arrangement between the School Board and the Respondent. The School Board reserves the right to utilize any other contract, including but not limited to any contract awarded by the State of Florida, another city or county government agency, school board, community college/state university system, cooperative bid agreement, or to directly negotiate/purchase per School Board policy and/or State Board Rule 6A-1.012. The district also reserves the right to bid separately any item(s) and/or service(s) covered under this contract at any time during this contract term.

3. Assignment of Contract and/or Payment:

This contract or agreement is personal to the parties herein and may not be assigned, in whole or in part, by Respondent without prior written consent of FCSB. Respondent herein shall not assign payments under this contract or agreement without the prior written consent of FCSB.

4. State Term Contracts and Agreements:

Before purchasing nonacademic commodities and contractual services, the School Board reviews the purchasing agreements and state term contracts available under s. 287.056 to determine whether it is in the School Board's economic advantage to use the agreements and contracts. As such, all purchasing agreements and state term contracts available under s. 287.056 have been reviewed. In addition, the School Board may use the cooperative state purchasing programs managed through the regional consortium service organizations pursuant to their authority under s. 1001.451(3).

5. Other Governmental Agencies:

All bidders awarded contracts from this RFQ may, upon mutual agreement, permit any school board, city, municipality or other government agency to participate in the contract under the same prices, terms and conditions, if agreed to by both parties.

6. Suspension of Work:

FCSB may in its sole discretion suspend any or all activities under the Contract or purchase order, at any time, when in the best interests of FCSB to do so. FCSB shall provide the Respondent written notice outlining the particulars of the suspension. Examples of the reason for suspension include, but are not limited to, budgetary constraints, declaration of emergency, or other such circumstances. After receiving a suspension notice, the Respondent shall comply with the notice and shall not accept any purchase orders. Within ninety days, or any longer period agreed to by the Respondent, FCSB shall either (1) issue a notice authorizing resumption of work, at which time activity shall resume, or (2) terminate the Contract or purchase order. Suspension of work shall not entitle the Contractor any additional compensation.

7. Termination for Convenience:

FCSB, by written notice to Respondent, may terminate the Contract in whole or in part when FCSB determines in its sole discretion that it is in its best interest to do so. Respondent shall not furnish any product after it receives the notice of termination, except as necessary to complete the continued portion of the Contract, if any. Respondent shall not be entitled to recover any cancellation charges or lost profits.

8. Termination for Cause:

FCSB may terminate the Contract if Respondent fails to: (1) deliver the product within the time specified in the Contract or any extension, (2) maintain adequate progress, thus endangering performance of the Contract, (3) honor any term of the Contract, or (4) abide by any statutory, regulatory, or licensing requirement. Rule 60A-1.006(3), F.A.C.,

governs the procedure and consequences of default. Respondent shall continue work on any work not terminated. Except for defaults of subcontractors at any tier, Respondent shall not be liable for any excess costs if the failure to perform the Contract arises from events completely beyond the control, and without the fault or negligence, of Respondent. If the failure to perform is caused by the default of a subcontractor at any tier, and if the cause of the default is completely beyond the control of both Respondent and the subcontractor, and without the fault or negligence of either, Respondent shall not be liable for any excess costs for failure to perform, unless the subcontracted products were obtainable from other sources in sufficient time for Respondent to meet the required delivery schedule. If, after termination, it is determined that Respondent was not in default, or that the default was excusable, the rights and obligations of the parties shall be the same as if the termination had been issued for the convenience of FCSB. The rights and remedies of FCSB in this clause are in addition to any other rights and remedies provided by law or under the Contract.

9. Cancellation of Award/Termination:

In the event any of the provisions of this solicitation are violated by Respondent(s), Purchasing Services will give written notice to Respondent(s) stating the deficiencies and unless the deficiencies are corrected within ten (10) business days, recommendation will be made to FCSB for immediate cancellation. Upon cancellation hereunder, FCSB may pursue any and all legal remedies as provided herein and by law.

The awarded contractor will have the option to terminate the contract upon written notice to the Purchasing Representative. Such notice must be received at least 90 days prior to the effective date of termination.

Cancellation of contract by the awarded contractor may result in removal from Respondents/Respondent list for a period of three years.

10. Conflict of Interest:

All Respondents must disclose the name of any officer, director, or agent who is also an employee of FCSB. All Respondents must disclose the name of any School Board employee who owns, directly or indirectly, any interest in the Respondents' business or any of its branches.

11. Default:

In the event that the awarded Respondent(s) should breach this contract, FCSB reserves the right to seek remedies in law and/or in equity.

12. Drug-Free Workplace:

If applicable, Respondent shall provide a statement concerning its status as a Drug-Free Work Place. Submittals received which are equal with respect to price, quality, and service and that have provided proper certification that a business has implemented a drug-free workplace program, shall be given preference in the award process.

13. False or Misleading Statements:

Submittals which contain false or misleading statements, or which provide references which do not support an attribute or condition claimed by Respondent may be rejected. If in the opinion of FCSB such information was intended to mislead FCSB in its evaluation of the submittal, and the attribute, condition, or capability is a requirement of this RFQ, it will be the basis for rejection of the submittal.

14. Funding Out / Termination / Cancellation:

Section 237.161, Florida Statutes, et seq., prohibit school boards from creating obligations in anticipation of budgeted revenues from one fiscal year to another without year-to-year extension provisions in the agreements.

It is necessary that fiscal funding out provisions be included in all submittals in which the terms are for periods longer than one (1) year. Therefore, the following "Funding Out" provision is an integral part of this solicitation and must be agreed to by all Respondents:

The School Board may, during the contract period, terminate or discontinue the services covered in this submittal at

the end of the School Board's then current fiscal year upon ninety (90) days' prior written notice to the successful Respondent.

Such prior written notice will state the following: "The lack of appropriated funds is the reason for termination. This includes an agreement not to replace the services being terminated with services similar to those covered in this submittal from another contractor in the succeeding funding period. This written notification will thereafter release the School Board of all further obligations in anyway related to the services covered herein."

The Funding Out statement must be included as part of any agreement. No agreement will be considered that does not include this provision for "funding out."

15. Indemnification / Hold Harmless Agreement:

This General Condition is NOT subject to negotiation and any bid that fails to accept these conditions will be rejected as "non-responsive", unless bidder is entitled to sovereign immunity by action of the Florida Legislature. Each party agrees to be fully responsible for its acts of negligence, or its agents' acts of negligence when acting within the scope of their employment and agrees to be liable for any damages resulting from said negligence to the extent allowable pursuant to Section 768.28, Florida Statutes. Nothing herein is intended to serve as a waiver of sovereign immunity by the School Board. Nothing herein shall be construed as consent by the School Board to be sued by third parties in any matter arising out of any contract. Bidder shall hold harmless and defend the School Board and its agents and employees from all suits and actions, including attorney's fees and all costs of litigation and judgments of any name and description arising out of or incidental to the performance of this contract or work performed thereunder. This provision shall also pertain to any claims brought against the School Board by an employee of the named Bidder, any Subcontractor, or anyone directly or indirectly employed by any of them. The bidder's obligation under this provision shall not be limited in any way by the agreed upon contract price as shown in this Contract or the bidder's limit of, or lack of, sufficient insurance protection.

16. Legal Requirements:

It shall be the responsibility of Respondent to be knowledgeable of all federal, state, county and local laws, ordinances, rules and regulations that in any manner affect the items covered herein which may apply. Lack of knowledge by Respondent(s) will in no way be a cause for relief from responsibility. Respondents doing business with FCSB are prohibited from discriminating against any employee, applicant, or client because of race, creed, color, national origin, sex, or age with regard to, but not limited to, the following: employment practices, rates of pay or other compensation methods, and training selection.

17. Intellectual Property:

Respondent, without exception, shall indemnify and save harmless the School Board of Flagler County, Florida, Flagler County Schools, and its employees from liability of any nature or kind including cost and expenses for or on account of any copyrighted, patented, or unpatented invention, process, or article manufactured or used in the performance of the contract, including its use by FCSB. If Respondent uses any design, device, or materials covered by letters, patent, or copyright, it is mutually agreed and understood, without exception, that the proposed prices shall include all royalties or costs arising from the use of such design, device, or materials in any way involved in the work. In addition, FCSB shall maintain all rights to the written documentation, electronic media, and other materials provided by Respondent in response to this submittal.

18. Public Entity Crimes:

A person or affiliate who has been placed on the convicted contractor list following a conviction for a public entity crime may not submit a response to a contract to provide any goods or services to a public entity, may not submit a response to a contract with a public entity for the construction or repair of a public building or public work, may not submit responses on leases of real property to a public entity, may not be awarded or perform work as a contractor, supplier, subcontractor, or consultant under a contract with any public entity, and may not transact business with any public entity in excess of the threshold amount provided in Section 287.017, Florida Statutes, for category two for a period of 36 months from the date of being placed on the convicted contractor list.

Respondent certifies, by submission of this RFQ, that neither it nor its principals is presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction by any Federal department or agency.

19. Public Records Law:

IF THE CONTRACTOR HAS QUESTIONS REGARDING THE APPLICATION OF SECTION 119.0701, FLORIDA STATUTES, TO THE CONTRACTOR'S DUTY TO PROVIDE PUBLIC RECORDS RELATING TO THIS CONTRACT, CONTACT THE SCHOOL BOARD OF FLAGLER COUNTY CUSTODIAN OF PUBLIC RECORDS AT 386.437.7526, EXT. 1105, GAVINK@FLAGLERSCHOOLS.COM, FLAGLER COUNTY PUBLIC SCHOOLS, RECORDS MANAGEMENT, 1769 E. MOODY BLVD., BLDG. 2, BUNNELL, FL 32110.

20. Reserved Rights of FCSB:

FCSB reserves the right to accept or reject any or all submittals, to waive any irregularities and technicalities and may, at its sole discretion, request a clarification or other information to evaluate any or all submittals. FCSB reserves the right to reject any and/or all items proposed or award to multiple Respondents. Prior to board approval, FCSB may cancel the RFQ or portions thereof, without penalty.

FCSB reserves the right, before awarding the contract, to require Respondent to submit evidence of qualifications or any other information FCSB may deem necessary.

FCSB reserves the right to further negotiate any submittal, including price, with the highest rated Respondent. If an agreement cannot be reached with the highest rated Respondent, FCSB reserves the right to negotiate and recommend award to the next highest Respondent or subsequent Respondents until an agreement is reached.

FCSB, in its sole judgment, will award or reject any or all submittals as is in the best interest of FCSB and the decision shall be final.

21. Requirements:

FCSB has established certain requirements with respect to submittals to be submitted by prospective Respondents. The use of "shall", "must" or "will" (except to indicate simple futurity) in the RFQ indicates a requirement or condition, which must be met. FCSB may, at its sole discretion, waive these requirements or conditions if the conditions are determined to be not material. A deviation from a requirement is material if the deficient response is not in substantial accord with the RFQ requirements, provides an advantage to one Respondent over other Respondents, or has a potentially significant effect on the delivery, quantity, or quality of items proposed amount paid to Respondent, or for the cost to FCSB. Material deviations cannot be waived.

22. Disclosure of Response Content:

- A. All material submitted becomes the property of the School Board and may be returned only at the School Board's option. FCSB has the right to use any or all ideas presented in any reply to this RFQ. Selection or rejection of any response does not affect this right.
- B. The School Board is governed by the Public Record Law, Chapter 119, Florida Statutes (F.S.). Only trade secrets as defined in Section 812.081(1)(c), Florida Statutes, or financial statements required by the School Board for road or public works projects as defined in 119.071(1)(c), Florida Statutes, (hereinafter "Confidential Materials"), may be exempt from disclosure. If a respondent submits Confidential Materials, the information must be segregated, accompanied by an executed Non-Disclosure Agreement for Confidential Materials and each pertinent page must be clearly labeled "confidential" or "trade secret." The School Board will not disclose such Confidential Materials, subject to the conditions detailed within the Agreement, which is attached to this solicitation. When such segregated and labeled materials are received with an executed Agreement, the School Board shall execute the Agreement and send the respondent a "Receipt for Trade Secret Information." RETURN THE NON-DISCLOSURE

AGREEMENT ONLY IF CONFIDENTIAL MATERIALS ARE BEING INCLUDED IN THE SUBMITTAL. THE CONFIDENTIAL MATERIALS WILL ONLY BE REVIEWED BY PURCHASING STAFF OR THE SELECTION COMMITTEE DURING THE EVALUATION PHASES.

23. Compliance with Federal Regulations:

All contracts involving Federal funds will contain certain provisions required by applicable sections of Title 34, Section 80.36(l) and Section 85.510 Code of Federal Regulations. The consultant certifies by signing the submittal that the consultant and its principals are not presently debarred, suspended, proposed for debarment, declared ineligible or voluntarily excluded from participation in Federally-funded transactions and may, in certain instances, be required to provide a separate written certification to this effect. During the term of any contract with FCSB, in the event of debarment, suspension, proposed debarment, declared ineligible or voluntarily excluded from participation in Federally-funded transactions, the Consultant shall immediately notify the Purchasing Representative, in writing. Respondent will also be required to provide access to records which are directly pertinent to the contract and retain all required records for seven years after final payments are made.

24. E-Verify:

In accordance with Florida Statute 448.095(2), Respondent will provide evidence (i.e.: their e-Verify number) of compliance with use of the e-Verify system to verify the work authorization status of all newly hired employees.

25. Licenses and Permits and Compliance with Laws, Ordinances and Codes

Respondent shall be solely responsible for any and all licenses and permits which may be required by any authority applicable to the provision of services outlined in this RFQ and any subsequent Agreement, and all costs for such licenses and permits shall be the sole responsibility of the respondent throughout the RFQ process and the term of any subsequent Agreement. Additionally, respondent shall be solely responsible for compliance with any and all laws, ordinances, or other regulations of any authority having jurisdiction over Flagler County School Board, and all costs for such compliance shall be the sole responsibility of the respondent throughout the RFQ process and the term of any subsequent Agreement. This Request for Qualifications is bound by the terms, conditions and requirements of Flagler County School Board Procurement and Purchasing Code, a copy of which may be requested.

26. Insurance Requirements

Prior to the signing of the contract by the Flagler County School Board, the Respondent and Subcontracts, at its sole expense, must obtain and maintain during the term(s) of the contract, and applicable to firm, its employees, agents, and subcontractors, the following insurance:

1. Workers Compensation insurance in statutory amounts and Employers Liability in an amount not less than One Million Dollars (\$1,000,000) each accident/disease. This insurance shall apply to all Consultant's employees who will be engaged in the performance of the services in this Agreement.
2. Commercial General Liability insurance, including products and completed operations and contractual liability, arising from any and all claims for property damage and bodily injury, including death, in an amount not less than One Million Dollars (\$1,000,000) each occurrence and Two Million Dollars (\$2,000,000) aggregate.
3. Automobile Liability insurance, including all owned, non-owned, and hired vehicles used in conjunction with providing services outlined in this Agreement, for property damage and bodily injury, including death, in an amount not less than One Million Dollars (\$1,000,000) each accident. This policy must include
4. Professional Liability insurance for any and all claims as a result of an action, lack of action, error or omission by Contractor, its employees or subcontractors in an amount not less than One Million Dollars (\$1,000,000) each claim. If such policy is written on a "claims-made" basis, coverage shall remain in effect for three (3) years after the expiration or termination of this Agreement and any of its extensions.

5. Errors and Omissions or Liability – The Design Professional shall carry a minimum of \$2,000,000.00 on projects estimated to cost not more than \$10,000,000.00 and a minimum of \$4,000,000.00 on projects estimated to cost more than \$10,000,000.00. Design Professionals selected for reuse of Flagler School Board prototype plans shall carry a minimum of \$2,000,000.00.

- A. All insurance policies shall be issued by insurers licensed to do business in the State of Florida and any insuring company is required to have a minimum rating of A- in the "Best Key Rating Guide" published by A.M. Best & Company, Inc.
- B. The School Board of Flagler County, its board members, employees, and representatives shall be listed both as an "Additional Insured" and "Certificate Holder" on the policy.
- C. The Consultant must submit to the Purchasing Department a certificate of insurance prior to the start of the contract. In no event may the insurance coverage be less than described.

27. Public Records

As a public entity, FCSB is subject to any and all public records regulations in effect in the State of Florida. As such, any and all correspondence and documentation associated with this RFQ and any subsequent Agreement should be assumed to be subject to public records disclosure.

28. Sales and Use Tax Exemption

As a public entity, FCSB is exempt from payment of State of Florida Sales and Use Tax. Upon award of any Agreement, FCSB shall furnish appropriate documentation confirming such exemption.

SECTION 3 – SCOPE OF SERVICES

PURPOSE

The intent of this Request for Qualifications (RFQ) is to select a qualified firm to provide architectural/engineering design services for the addition of a new classroom building and renovations of an existing building at Matanzas High School pursuant to Chapter 1013, Florida Statutes; the Florida Consultant's Competitive Negotiation Act, Section 287.055 Florida Statutes; State Requirements for Educational Facilities; Rule 6A-2.0010, Florida Administrative Code; and School Board Rules.

SCOPE OF SERVICES

The Flagler County School District is seeking the services of a qualified firm to provide architectural/engineering design services for a new classroom building at Matanzas High School, located at 3535 Pirate Nation Way, Palm Coast, FL 32137.

The Architect's scope will include the programming, design, bidding support, construction administration, and closeout services.

The new classroom space is envisioned to be a two story building with approximately 20,000 square feet within the existing campus, allowing for the addition of 380 student stations. Renovations to existing space within the current building are also to be included in this project.

Design services are scheduled to start in January 2022, construction start in the Fall of 2022, construction completion in June 2023.

The projects will be designed to meet the criteria set forth by the Department of Education, State Requirements for Educational Facilities, Sustainability Design, Florida Building Code, Florida Accessibility Codes, Flagler County School Educational Facilities Design Standards and all other applicable requirements.

The school will be fully occupied during construction and will require extra care with the phasing of the project. Currently, the intention is to select Design-Bid-Build.

SECTION 4 – SUBMITTAL PREPARATION

1. Submittal Preparation

Respondents interested in being considered for these services shall submit one (1) hardcopy response marked “Original” and seven (7) hardcopies containing all original documents of the required response to the Request for Qualifications (RFQ) and shall be signed by a person legally authorized to bind the firm.

To facilitate analysis of its submittal, Respondent must prepare its submittal in accordance with the criteria outlined in Section 5. Submittals shall respond to each of the criteria in the same order listed and use tabs to identify each section.

FCSB emphasizes that the Respondent concentrate on accuracy, completeness, and clarity of content. The Respondent must use sections and tabs which are clearly identified and also must number and label all parts, pages, figures, and tables in its proposal.

If a Respondents submittal deviates from these instructions, such proposal may, in FCSB sole discretion, be rejected.

2. Submittal Delivery

Submittals shall be mailed or delivered in a sealed package clearly marked on the outside with the Respondent Name, Solicitation Name, Solicitation Number and Due Date. Respondents are encouraged to utilize the template as provided below.

Delivery of a package to any location other than the Flagler County Schools Purchasing Department does not constitute official receipt. Any package delivered after the advertised deadline will not be considered.

Note: Please ensure that if a third party carrier (Federal Express, Airborne, UPS, USPS, etc.) is used, that they are properly instructed to deliver your proposal only to the Flagler County Schools Purchasing Department address as identified.

All submittal documents and electronic media must be in a sealed package, boldly and clearly marked as follows:

DO NOT OPEN - SEALED SUBMITTAL - DO NOT OPEN	
Company Name: _____	
RFQ Number:	22-01Q
RFQ Title:	A&E Design for MHS Addition & Renovations
Submittals Due:	November 16, 2021 – 12:00pm
DELIVERY TO:	Flagler County Schools Purchasing Department 1769 E. Moody Blvd, Bldg 2 Second Floor - Finance Bunnell, FL 32110

3. Submittal and Organization

Submittals must provide the required information in the following order and format. Failure to provide the required information will affect the evaluation of the submittal and shall be grounds for disqualification. Copies of the submittal signed by an authorized representative of Respondent, including name, title, address, and telephone number of one individual who is Respondent's designated representative.

Table of Contents – is required to properly organize your proposal and to be used for a quick reference of sections of the submittal for the Selection Committee to review.

Tab 1 – Letter of Intent

This letter will summarize in a brief concise manner, the firm understanding of the Scope of Work and makes a positive commitment to perform the work/services in a timely manner. The letter must be signed by an official authorized representative to make such commitments and enter into contract with the District. The letter must indicate the official's title or authority.

Tab 2 – Company Information/Business Overview

Indicate whether Corporation, Joint Venture, or Partnership. Submit a copy of the State of Florida Department of State records indicating when corporation was organized, corporation number, and date and status of most recent annual report. Respondent submitting as joint ventures shall submit a copy of their joint venture agreement. If a joint venture or prime/subcontractor arrangement of (2) two Firms, indicate how the work will be distributed between the partners. In addition, include information relating to:

Time in Business – Length of time the Firm has been in business under same name.

Capabilities – Size, resources, and capabilities of responding entity:

- a. Organizational structure of business entity for this program (partners, associates, consultants, sub-contractors, other participation).
- b. Indicate the depth of staff and capabilities from within the organization which can be drawn upon as needed, to include management, professional technical, and support staff.

Licenses and Certificates – Attach a copy of the Firm's Business Occupational License and all applicable current State of Florida professional registration license renewals for the Respondent's key professional personnel to be used on the Project. Respondent shall be properly registered to practice in the State of Florida with the appropriate state board governing the services offered. The Selection Committee may verify the current status with the appropriate state board. Provide copies of current State of Florida Department of Professional Regulation Construction Industry Licensing Board Certificate of Corporate Authorization showing (1) License No., (2) Certificate of Authorization date and (3) designation of professional(s) qualifying the corporation to practice as a Professional Engineering Firm.

Litigation – Disclose any material changes in the business operations of the Firm, including without limitation any pending bankruptcy proceedings, bankruptcies, receiverships, mergers, acquisitions, stock acquisitions or spin-offs which have occurred within the last three (3) years and any material pending or threatened litigation. If appropriate, discuss the impact of these changes on the Firm's financial or managerial ability to perform the noted tasks under this Contract. Provide the name, title, address and phone number of the financial officer of the Firm responsible for providing this information.

Tab 3 – Workload

Provide a list of outstanding (active) projects, client names, status of completion, anticipated completion dates, dollars committed to open projects, and overall workload including Flagler County Schools.

Tab 4 – Project Approach

Explain your firm's approach to project management to include, but not be limited to quality assurance, cost control, and reporting to the Owner's Representative and/or Project Management Team.

- a) Respondent shall present a plan setting forth the approach and program for implementing and carrying-out the required services to include; programming, master planning, information management systems, document control, records management, project status reporting, FDOE documentation/submittals, and project administrative services.
- b) Respondent shall describe how the proposed organizational structure will ensure orderly communications, distribution of information, effective coordination of activities, and accountability.
- c) Respondent shall describe the methods you will employ for the following tasks, taking into consideration that the school will be fully occupied during construction and that the district may utilize the services of a Construction Manager:

Design Reviews and Coordination
Permitting
Scheduling & Phasing
Budgeting
Contract Administration

Tab 5 – Experience and Past Performance

Respondents may submit any information they deem appropriate for evaluation of relevant K-12 experience and past performance of additions and new construction which have/had scope similar to the services detailed in the Scope of Services section of this RFQ.

Respondent shall demonstrate that they have experience with the requirements set forth by the Department of Education, State Requirements for Educational Facilities, Sustainability Design, Florida Building Code, Florida Accessibility Codes, and all to applicable requirements.

Respondent shall provide a list of all contracts of school design experience (present and prior) for K-12 Education in the last ten (10) years. List the contracts in priority order, with the most related contract first. For each of the listed contracts, identify the following information:

1. Projects of comparable size and complexity, defining specific services provided
2. Information describing the scope and cost of the project
3. The lead personnel on each project, and their respective responsibilities
4. Owner's representative name, address, and phone number
5. Nature of your firm's responsibility on this contract
6. Contract term - include start and end date
7. Identify your firm's task manager and other key professionals assigned to the contract

The committee requires that the firm's direct project experience be differentiated from individual staff experience. Therefore, if you choose to identify individuals' project experience (gained at other firms), this section should be clearly subdivided as follows:

1. Firm's Project Experience
2. Individuals' Project Experience (while employed by other firms)

Litigation – Identify all litigation in which your Firm has been a party to legal action (including arbitration, administrative proceedings, etc.) or lawsuits during the last five (5) years involving a client for claims in excess of \$100,000.00. Include a brief description of the dispute and its current status. Where the action or lawsuit has

involved a guaranteed maximum price contract, please describe the particular circumstances giving rise to the dispute and the actions that your Firm took to attempt to settle the matter prior to and after suit being filed.

Describe in detail any projects within the last three years where liquidated damages, penalties, liens, defaults, cancellations of contract or termination of contract were imposed, sought to be imposed, threatened or filed against your organization.

Tab 6 – Proposed Project Staff and Functions

Respondents shall express the general and specific project related experience and capability of in-house staff and sub-consultants and their functions as they relate to the Scope of Services detailed in this RFQ.

Respondents should name the actual staff to be assigned to work under this contract; describe their ability and experience, job skills, education, training, experience, and portray the function of each within their organization and their proposed role. Proposed staff should be present for oral presentations and/or interview.

If a joint venture, or prime subcontractor arrangement of two (or more) firms, the Respondent must indicate how the work shall be distributed between the associated firms. Describe how the organizational structure will ensure orderly communications, distribution of information, effective coordination of activities and accountability.

For Office Staff and On-site Staff – Provide an organization chart indicating key personnel and their responsibilities. It should be understood that it is the intent of the School District to insist that staff indicated in this RFQ response actually execute the work. All Civil Engineering Services performed by the Consultant shall be conducted by persons that are properly licensed, as required by law.

Tab 7 – References

Respondents shall utilize the Reference Form attached to this solicitation as Attachment M.

Five (5) total references shall be provided utilizing Attachment M. Of the required references, three (3) listed should be related to K-12 Education. Flagler County Schools must not be referenced. The District may solicit Client References as needed to confirm credentials.

- **List (2) two clients** for projects **currently under service**, or completed within the **last 12 months**.
- **List (3) K-12 Education clients** for whom you have provided services in the **past five years**. These clients should have had direct contact with your firm's primary staff proposed for this RFQ.

Tab 8 – Confidential Materials, Financial Affirmation, and Performance and Payment Bond Requirement

1. **Confidential Materials.** Confidential materials shall be submitted in this section – any materials that qualify as “trade secrets” shall be segregated, clearly labeled and accompanied by an executed “**Attachment H - Non-Disclosure Agreement for Confidential Materials**”.
2. **Financial Affirmation.** All firms shall certify and provide a statement that they are financially stable and have the necessary resources, human and financial, to provide the services at required by the District. “**Attachment N – Financial Affirmation**” has been provided and must be submitted in this Tab.
3. **Performance and Payment Bond Requirement.**
 - a. All respondents shall include documentation supporting proof of their ability to provide a performance and payment bond within ten days after the School Board's approval of the final agreement. Prior to the bonds being delivered to the FCSB, the bonds shall be recorded by the awarded firm, in the public records of Flagler County, Florida and the bonds delivered to the FSCB shall indicate such recording has been executed.

- b. The surety shall hold a certificate of authority authorizing it to write surety bonds in Florida and the surety bond shall be countersigned by a licensed Florida agent appointed by the surety. The surety shall have a minimum Best's Rating of "A-" according to A. M. Best Company and shall also maintain a current certificate of authority as an acceptable surety on Federal Bonds in accordance with U.S. Department of Treasury Circular 570, current revision. If the amount of the bond exceeds the underwriting limitations set forth in Circular 570, in order to qualify, the net retention of the surety company shall not exceed the underwriting limitation in Circular 570 and the surety shall provide evidence satisfactory to the BOARD that the amount in excess of the net retention is protected by co-insurance, reinsurance, or other methods in accordance with Treasury Circular 297, Revised September 1, 1978 (31 CFR Section 223.10, Section 223.11).

Tab 9 – Insurance

Attach evidence of required insurance coverage or proof of insurability in the amounts indicated in Section 2. If available, a properly completed ACORD Form is preferable. Final forms must contain the correct solicitation and/or project number and Flagler County School Board. Firms that have owner/operators that have filed a "Notice of Election to be Exempt" shall submit a copy with the proposal. Incorporated and unincorporated Firms that qualify for an exemption under the Florida Worker's Compensation law in Chapter 440 Florida Statutes shall submit an executed waiver relieving the School District of liability in the event they are injured while providing goods and/or services to the School District.

Tab 10 – Required Forms

Attachment A – Submittal Acknowledgement
Attachment B – Vendor Information
Attachment C – Acknowledgement of Addenda
Attachment D – Respondent's Statement of Qualification
Attachment E – Conflict of Interest Disclosure
Attachment F – Certification Regarding Debarment, Suspension, and Other Responsibility Matters
Attachment G – Drug Free Work Place Certification
Attachment I – Sworn Statement of Florida Statute **Section 287.133(3) Public Entity Crime**
Attachment J – Sworn Statement of Florida Statute **Section 1012.465 The Jessica Lunsford Act**
Attachment K – Application for Certification
Attachment L – Prohibition Against Contingent Fees

*Attachment H, M and N are to be submitted in the specified tabs as identified above.

SECTION 5 – EVALUATION OF SUBMITTALS

1. Evaluation of Submittals

Submittals will be reviewed and evaluated by the Selection Committee as described herein.

2. Selection Committee

The Selection Committee will convene, review, evaluate, and rank all valid responses submitted based on the evaluation criteria.

The Selection Committee reserves the right to interview any, all, or none of the Respondents that responded to the RFQ and to require formal presentations who will administer and be assigned to work on behalf of the contract before recommendation of award.

The Selection Committee reserves the right to conduct site visits of Respondent's facilities and/or of a current project it is managing.

3. Evaluation Process

FCSB will not be under any requirement to complete the evaluation by any specific date and reserves the right to suspend or postpone the evaluation process should the need arise. However, it is anticipated that the review/evaluation process will be completed in a timely manner per the schedule provided. Purchasing staff will participate in an advisory capacity only.

4. Evaluation Criteria

Submittals that meet the requirements contained in this RFQ will be evaluated based on the following criteria.

Criteria	Value
K-12 Past Experience and Performance	40
Project Staff and Functions	30
Approach and Methodology	30
Total	100

5. Right to Negotiate

FCSB reserves the right to negotiate price and contract terms and conditions with the most qualified Respondent(s) to provide the requested service. If a mutually beneficial agreement with the highest ranked Respondent is not reached, the School Board reserves the right to enter into contract negotiations with the next highest ranked Respondent and continue this process until agreement is reached. Respondents are cautioned to provide their best offer initially.

6. Award and Contract

Awards shall be made to the most responsive and responsible Respondents whose submittals are determined, in writing, to be the most advantageous, bringing "best value" to meet the criteria of FCSB. Following the selection and upon final negotiation of the contract terms and conditions with the recommended Respondents, recommendation for contract awards, as required, will be submitted to the Superintendent. The Superintendent will recommend to the School Board the awards or rejection of any and/or all submittal(s).



Attachment A

Submittal Acknowledgement

RFQ No: 22-01Q

RFQ Title: Architectural/Engineering Design Services for Matanzas High School Addition & Renovations

The Respondent hereby certifies by submission and signature of this submittal that Respondent complies fully with this RFQ. In addition, the representative below is duly authorized to sign this submittal on behalf of Respondent, company, or corporation and fully understands that by virtue of signing and returning this Submittal Acknowledgement represents complete and unconditional acceptance of the requirements, terms and conditions of this RFQ and all attachments, exhibits and any addenda released hereto.

Authorized Signature	Name & Title (printed)
Respondent Name	Federal I.D. #
Street Address	
City	State Zip
Telephone	E-Mail Address
Date of Submittal	Contact Person, Number

This form must be completed and returned with your submittal. All submittals must be signed by an officer or employee having authority to legally bind Respondent(s).



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Attachment B
Vendor Information

Name of Entity, Individual(s), Partners or Corporation:

Taxpayer Identification Number (SSN/EIN): _____

Business/Purchase Order Address:

Address _____

City _____ State _____ Zip Code _____

Phone _____ Fax _____

Contact _____

E-mail _____

Remittance Address (if different from above):

Address _____

City _____ State _____ Zip Code _____

Phone _____ Fax _____

Contact _____

E-mail _____

Payment Method: ☐ CHECK
 ☐ ACH (If ACH, Flagler Schools will email an enrollment form)

Current W-9 Attached? ☐ YES



Attachment C

Acknowledgement of Addenda

RFQ No: 22-01Q

RFQ Title: Architectural/Engineering Design Services for Matanzas High School Addition & Renovations

Acknowledgment is hereby made of receipt of the following Addenda issued during the solicitation period:

Addendum No.	Dated

Respondent

Authorized Signature



Attachment D

Respondent's Statement of Qualification

Please provide written responses to the following questions. If the answer to any of the questions is "Yes", Respondent shall describe fully the circumstances, reasons therefore, the current status, and ultimate disposition of each matter that is the subject of this inquiry.

1. Has Respondent been declared in default of any contract? ☐ Yes ☐ No
2. Has Respondent forfeited payment of performance bond issued by a surety company on any contract? ☐ Yes ☐ No
3. Has an uncompleted contract been assigned by Respondent's surety company on any payment of performance bond issued to Respondent arising from its failure to fully discharge all contractual obligations thereunder? ☐ Yes ☐ No
4. Within the past three (3) years, has Respondent filed for reorganization, protection from creditors, or dissolution under the bankruptcy statutes? ☐ Yes ☐ No
5. Is Respondent now the subject of any litigation in which an adverse decision might result in a material change in Respondent's financial position or future viability? ☐ Yes ☐ No
6. Is Respondent currently involved in any state of a fact-finding, negotiations, or resistance to a merger, friendly acquisition, or hostile take-over, either as a target or as a pursuer? ☐ Yes ☐ No
7. License Sanctions: List any regulatory or license agency sanctions. The School Board may perform a background check on Respondent with all state and regulatory agencies.
8. Respondent must provide the name and address of all persons or entities serving or intending to serve as principals in Respondent's Respondent.

Respondent Name

Authorized Signature



Attachment E

Conflict of Interest Disclosure

Conflict of Interest: Respondents shall be familiar and comply with all applicable conflict of interest legal requirements including Florida's Code of Ethics for Public Officers, Chapter 112, Part III, Florida Statutes. Respondents must complete and submit this Conflict of Interest Disclosure. The form must be signed by an officer or by an authorized individual and notarized by a notary public. The Respondent may disclose any additional information regarding the existence or appearance of a conflict of interest under state or local laws. If the Respondent or its authorized agent omits, misrepresents or falsifies material information, the selection of the Respondent and any executed contract shall be void.

In accordance with the Conflict of Interest provision, the Bidder certifies the following:

- a. _____ There are no identified conflicts of interest.
- b. _____ The following potential conflicts of interest have been identified:

Name of School Board Affiliate

Relationship to Business

Business Ownership Percentage

Respondent Name

Authorized Printed Name

Authorized Signature

Title of Authorized Official

Notary Public

State of: _____ County of: _____

The foregoing instrument was acknowledged before me this ____ day of _____ 20__ by _____.

Notary Public Signature: _____

Commission Expires: _____

(Seal)

Personally Known _____ or Produced Identification _____

Type of Identification Produced _____



Certification Regarding Debarment, Suspension, and Other Responsibility Matters - Primary Covered Transactions

This certification is required by the regulations implementing Executive Order 12549, Debarment and Suspension, 7 CFR Part 3017, Section 3017.510, Participants' responsibilities. The regulations were published as Part IV of the January 30, 1989 Federal Register (pages 4722-4733). Copies of the regulations may be obtained by contacting the Department of Agriculture agency offering the proposed covered transaction.

BEFORE COMPLETING CERTIFICATION, READ INSTRUCTIONS BELOW

1. The prospective primary participant certifies to the best of its knowledge and belief, that it and its principals:
 - (a) are not presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from covered transactions by any Federal department or agency;
 - (b) have not within a three-year period preceding this submittal been convicted of or had a civil judgment rendered against them for commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State or local) transaction or contract under a public transaction; violation of Federal or State antitrust statutes or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, or receiving stolen property;
 - (c) are not presently indicted for or otherwise criminally or civilly charged by a governmental entity (Federal, State or local) with commission of any of the offenses enumerated in paragraph (1) (b) of this certification; and
 - (d) have not within a three-year period preceding this application/submittal had one or more public transactions (Federal, State or local) terminated for cause or default.Where the prospective lower tier participant is unable to certify to any of the statements in this certification, such prospective participants shall attach an explanation to this submittal.

Respondent Name

PR/Award Number or Project Name

Printed Name of Authorized Representative

Authorized Signature _____ Date _____

Instructions for Certification

1. By signing and submitting this form, the prospective primary participant is providing the certification set out above in accordance with these instructions.
2. The inability of a person to provide the certification required below will not necessarily result in denial of participation in this covered transaction. The prospective participant shall submit an explanation of why it cannot provide the certification set out on this form. The certification or explanation will be considered in connection with the department or agency's determination whether to enter into this transaction. However, failure of the prospective primary participant to furnish a certification or an explanation shall disqualify such person from participation in this transaction.
3. The certification in this clause is a material representation of fact upon which reliance was placed when the department or agency determined to enter

into this transaction. If it is later determined that the prospective primary participant knowingly rendered an erroneous certification, in addition to other remedies available to the Federal Government, the department or agency may terminate this transaction for cause or default.

4. The prospective primary participant shall provide immediate written notice to the department or agency to which this submittal is submitted if at any time the prospective primary participant learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.
5. The terms "covered transaction," "debarred," "suspended," "ineligible," "lower tier covered transaction," "participant," "person," "primary covered transaction," "principal," "submittal," and "voluntarily excluded," as used in this clause, have the meanings set out in the Definitions and Coverage sections of the rules implementing Executive Order 12549. You may contact the department or agency to which this submittal is being submitted for assistance in obtaining a copy of those regulations.
6. The prospective primary participant agrees by submitting this form that, should the proposed covered transaction be entered into, it shall not knowingly enter into any lower tier covered transaction with a person who is debarred, suspended, declared ineligible, or voluntarily excluded from participation in this covered transaction, unless authorized by the department or agency entering into this transaction.
7. The prospective primary participant further agrees by submitting this form that it will include the clause titled "Certification Regarding Debarment, Suspension, Ineligibility and Voluntary Exclusion - Lower Tier Covered Transactions," provided by the department or agency entering into this covered transaction, without modification, in all lower tier covered transactions and in all solicitations for lower tier covered transactions.
8. A participant in a covered transaction may rely upon a certification of a prospective participant in a lower tier covered transaction that is not debarred, suspended, ineligible or voluntarily excluded from the covered transaction; unless it knows that, the certification is erroneous. A participant may decide the method and

frequency by which it determines the eligibility of its principals. Each participant may, but is not required to, check the Non-Purchasing List.

9. Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render in good faith the certification required by this clause. The knowledge and information of a participant is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.
10. Except for transactions authorized under paragraph 6 of these instructions, if a participant in a covered transaction knowingly enters into a lower tier covered transaction with a person who is suspended, debarred, ineligible, or voluntarily excluded from participation in this transaction, in addition to other remedies available to the Federal Government, the department or agency may terminate this transaction for cause or default.



Attachment G

Drug-Free Workplace Certification

Identical Tie Bids – In accordance with Section 287.087, Florida Statutes, preference shall be given to businesses with drug-free workplace programs. Whenever two or more bids, which are equal with respect to price, quality and service, are received by the State or by any political subdivision for the Purchasing of commodities or contractual services, a bid received from a business that certifies that it has implemented a drug-free workplace program shall be given preference in the award process. Established procedures for processing tie bids will be followed if none of the tied contractors has a drug-free workplace program. In order to have a drug-free workplace program, a business shall:

1. Publish a statement notifying employees that the unlawful manufacture, distribution, dispensing, possession or use of a controlled substance is prohibited in the workplace and specifying the actions that will be taken against employees for violations of such prohibition.
2. Inform employees about the dangers of drug abuse in the workplace, the business's policy of maintaining a drug-free workplace, any available drug counseling, rehabilitation and employee assistance programs, the penalties that may be imposed upon employees for drug abuse violations.
3. Give each employee engaged in providing the commodities or contractual services that are under bid a copy of the statement specified in subsection (1).
4. In the statement specified in subsection (1), notify the employees that, as a condition of working on the commodities or contractual services that are under bid, the employee will abide by the terms of the statement and will notify the employer of any conviction of, or plea of guilty or nolo contendere to, any violation of Chapter 893 or of any controlled substance law of the United States or any state, for a violation occurring in the workplace no later than five (5) days after such conviction.
5. Impose a sanction on, or require the satisfactory participation in a drug abuse assistance or rehabilitation program if such is available who is so convicted.
6. Make a good faith effort to continue to maintain a drug-free workplace through implementation of this section.

As the person authorized to sign the statement, I certify that this respondent complies fully with the above requirements.

Respondent Name

Authorized Signature



Attachment H
Non-Disclosure Agreement
for
Confidential Materials
RFQ No. 22-01Q

RETURN THIS FORM ONLY IF CONFIDENTIAL MATERIALS ARE BEING INCLUDED IN THE SUBMITTAL. PLEASE READ THE SECTION IN THE BID DOCUMENT TO DETERMINE IF THIS APPLIES.

Respondent: _____

Address: _____

This Agreement is entered into as of the date of the last signature set forth below between the School Board of Flagler County, a political subdivision of the State of Florida (the "School Board"), and the above named Respondent (hereinafter the "Respondent"). The School Board of Flagler County and the Respondent are collectively referred to as the "Parties" and may be referred to individually as a Party.

RECITALS

WHEREAS, the Respondent possesses certain confidential trade secret materials that it wishes to disclose to the School Board of Flagler County for the purpose of responding to a solicitation or otherwise conducting business with the School Board; and

WHEREAS, the School Board desires to review such materials in order to evaluate the School Board's interest in negotiating and concluding an agreement for the purchase of certain products and services, or otherwise conducting business with the Respondent.

NOW THEREFORE, in consideration of the mutual promises and premises contained herein, the receipt and sufficiency of which are hereby acknowledged, the School Board and the Respondent agree as follows:

1. Confidential Materials. The Respondent warrants and represents to the School Board that the materials described in the attached (the "Confidential Materials") constitute trade secrets as defined by Section 812.081(1)(c), Florida Statutes, or financial statements required by the School Board for projects as defined in 119.071(1)(c), Florida Statutes. Subject to the terms and conditions of this Agreement, the School Board agrees not to disclose such Confidential Materials to third parties.
2. Additional Materials. During the course of the review or the business relationship with the School Board, the Respondent may disclose additional confidential or trade secret information to the School Board in which case the restrictions and obligations on the use and disclosure of the Confidential Materials imposed by this Agreement shall also apply to such additional information to the extent permitted by Florida law. Any such additional confidential or trade secret information shall be duly marked and stamped "confidential" or "trade secret" prior to delivery to the School Board, and shall be subject to this Agreement and Section 812.081(2), Florida Statutes, only if written receipt is provided by the School Board acknowledging receipt of such materials.

3. Exclusions. For purposes of this Agreement, the term “Confidential Materials” does not include the following:
 - (a) Information already known or independently developed by the School Board;
 - (b) Information in the public domain through no wrongful act of the School Board;
 - (c) Information received by the School Board from a third party who was legally free to disclose it;
 - (d) Information disclosed by the Respondent to a third party without restriction on disclosure;
 - (e) Information disclosed by requirement of law or judicial order, including without limitation Chapter 119 Florida Statutes; or
 - (f) Information that is disclosed with the prior written consent of the Respondent, but only to the extent permitted by such consent.
4. Non-Disclosure by Respondent. In the event that the School Board discloses confidential or trade secret information to Respondent, the Respondent agrees to not disclose such information to any third party or copy such information or use it for any purpose not explicitly set forth herein without the School Board’s prior written consent. Further, upon conclusion of discussions or business transactions between the School Board and the Respondent, or at any time upon request of the School Board, Respondent agrees to return such information (including any copies) to the School Board.
5. Duty of Care. Each Party agrees to treat the other Party’s confidential or trade secret information with the same degree of care, but not less than reasonable care, as the receiving Party normally takes to preserve and protect its own similar confidential information and to inform its employees of the confidential nature of the disclosing Party’s information and of the requirement of nondisclosure. In the event either Party has actual knowledge of a breach of the nondisclosure requirements set forth in this Agreement, the Party acquiring such knowledge shall promptly inform the other Party and assist that Party in curing the disclosure, where possible, and preventing future disclosures.
6. Limitations of Florida Law. Respondent understands and agrees that its assertion that any item is confidential or a trade secret does not, in and of itself, render such material exempt from the Florida Public Records Law, Chapter 119 of the Florida Statutes, and that the School Board’s ability to prevent disclosure of confidential and trade secret information may be subject to determination by a Florida court that such materials qualify for trade secret protection under Florida law. In the event a third party makes a public records request for the Confidential Materials or other materials deemed by Respondent to be confidential or a trade secret, the School Board may submit the materials to the court for inspection in camera as set forth in Section 119.07(1)(g) Florida Statutes. Respondent further understands that the School Board may be required to disclose such information if directed by a court of competent jurisdiction.
7. Indemnification by Respondent. In the event of any litigation instituted by a third party to compel the School Board to disclose such materials, Respondent shall, at its sole cost and expense, provide assistance to the School Board in defending the denial of the records request, and shall hold the School Board harmless from any claim for statutory costs and attorney’s fees arising from the School Board’s refusal to disclose such materials.
8. No Additional Obligations. This Agreement shall not be construed in any manner to be an obligation for either Party to enter into any subsequent contract or agreement.
9. Sovereign Immunity. Nothing in this Agreement shall be deemed as a waiver of immunity or limits of liability of the School Board beyond any statutory limited waiver of immunity or limits of liability, which has been or which may be adopted by the Florida Legislature, regardless of the nature of any claim which may arise, including but not limited to a claim sounding in tort, equity or contract. In no event shall the School Board be liable for any claim or claims for breach of contract, including without limitation the wrongful disclosure of confidential or trade secret information for an amount which exceeds, individually and collectively, the then current statutory limits of liability for tort claims. Nothing in this Agreement shall inure to the benefit of any third party for the purpose of allowing any claim against the School Board, which would otherwise be barred under the Doctrine of Sovereign Immunity or by operation of law.

10. Notice. Whenever either Party desires to give notice unto the other, it must be given by written notice, sent by registered United States mail, with return receipt requested, addressed to the party for whom it is intended, at the place last specified, and the place for giving of notice in compliance with the provisions of this paragraph. For the present, the Respondent designates the address set forth above as its place for receiving notice, and the School Board designates the following address for such notice:

The School Board of Flagler County, Florida
Coordinator of Purchasing
1769 E. Moody Blvd., Bldg. #2
Bunnell, FL 32110

11. Governing Law. This Agreement shall be governed by the laws of the State of Florida, and venue for any action arising out of or relating to the subject matter of this Agreement shall be exclusively in Flagler County, Florida, or the Federal School Board Court for the Middle School Board of Florida, Jacksonville Division.

12. Respondent and the School Board hereby expressly waive any rights either may have to a trial by jury of any civil litigation related to this Agreement for any litigation related to or arising from this solicitation and resulting agreement.

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be executed by their duly authorized officers the day and year as set forth below.

The School Board of Flagler County, Florida

BY: _____
NAME: _____
TITLE: Coordinator of Purchasing
DATE: _____

Respondent

BY: _____
NAME: _____
TITLE: _____
DATE: _____

ATTEST:

BY: _____
NAME: _____
TITLE: _____
DATE: _____



Attachment I

Sworn Statement Pursuant to Section 287.133(3), Florida Statutes Public Entity Crime

We certify that we have read and understand Florida Statutes, section 287.133 Public Entity crime; denial or revocation of the right to transact business with public entities.

We understand a public entity crime, as defined in Florida Statutes, section 287.133, is a violation of any state or federal law by a person with respect to and directly related to the transaction of business with any public entity or with an agency or political subdivision of any other state or with the United States, including, but not limited to, any bid, submittal, reply, or contract for goods or services, any lease for real property, or any contract for the construction or repair of a public building or public work, involving antitrust, fraud, theft, bribery, collusion, racketeering, conspiracy, or material misrepresentation.

We understand that a person or affiliate who has been placed on the convicted bidder list following a conviction for a public entity crime may not submit a bid, bid, or reply on a contract to provide any goods or services to a public entity; may not submit a bid, submittal, or reply on a contract with a public entity for the construction or repair of a public building or public work; may not submit bids, submittals, or replies on leases of real property to a public entity; may not be awarded or perform work as a contractor, supplier, subcontractor, or consultant under a contract with any public entity; and may not transact business with any public entity in excess of the threshold amount provided in s. 287.017 for CATEGORY TWO for a period of 36 months following the date of being placed on the convicted bidder list.

Please mark an (X) next to the statement which is applicable to your entity.

_____ Neither the entity submitting this sworn statement, nor any of its officers, directors, executives, partners, shareholders, employees, members or agents who are active in either management of the entity, nor any affiliate of the entity has been charged with and convicted of a public entity crime subsequent to July 1, 1989.

_____ The entity submitting this sworn statement, or one or more of its officers, directors, executives, partners, shareholders, employees, members or agents who are active in the management of the entity, or any affiliate of the entity has been charged with and convicted of a public entity crime subsequent to July 1, 1989.

_____ The entity submitting this sworn statement, or one or more of its officers, directors, executives, partners, shareholders, employees, members or agents who are active in the management of the entity, or any affiliate of the entity has been charged with and convicted of a public entity crime subsequent to July 1, 1989. However, there has been a subsequent proceeding before a Hearing Officer of the State of Florida, Division of Administrative Hearings and the Final Order entered by the Hearing Officer determined that it was not in the public interest to place the entity submitting this sworn statement on the convicted bidder list (a copy of the final order is required; please attach).

Respondent Name

Authorized Signature

Notary Public

State of: _____ County of: _____

The foregoing instrument was acknowledged before me this ____ day of _____ 20__ by _____.

Notary Public Signature: _____

Commission Expires: _____

(Seal)

Personally Known _____ or Produced Identification _____

Type of Identification Produced _____



Attachment J

Sworn Statement Pursuant to Section 1012.465, Florida Statutes; The Jessica Lunsford Act

1. We understand that during the 2005 Legislative Session, House Bill 1877, The Jessica Lunsford Act (hereinafter "The Act" or "Act") was passed and approved by Governor Bush on May 2, 2005, with an effective date of September 1, 2005.
2. We understand that the Act sets forth the background screening requirements of section 1012.465, Florida Statutes for all non-instructional school employees and **contractual personnel** by requiring all non-instructional School Board employees and contractual personnel who are permitted access on school grounds when students are present, who have direct contact with students or who have access to or control of school funds to meet level 2 screening requirements, as described in s. 1012.32. Further, we understand that the Act defines **contractual personnel** to include any bidder, individual, or entity under contract with a school or a school board.
3. We understand that all subcontractors assigned by the contractor must also comply with background screening requirements of s. 1012.32.
4. We further understand that every 5 years following entry into a contract, all contracted personnel or individuals assigned by the contractor who meet the conditions in section 2., above, must meet level 2 rescreening requirements as described in s. 1012.32.
5. We understand that level 2 background screening requirements, as defined in section 1012.32, Florida Statutes requires that fingerprints of all contractual personnel must be obtained and submitted to the Florida Department of Law Enforcement for state processing and to the Federal Bureau of Investigation for federal processing.
6. We understand that any costs associated with the required background screenings will be borne by the contractor.
7. We understand that if a (potential) contractor does not meet the level 2 requirements, the individual shall not be permitted to contract with the School Board and shall be immediately suspended from working in that capacity and shall remain suspended until final resolution of any appeals.
8. We understand that failure to comply with level 2 background screenings as required by section 1012.465, Florida Statutes, will disqualify the contractor from conducting business with the School Board.

Respondent Name

Authorized Signature



Attachment K

Application for Certification

The Application for Certification is hereby submitted to be considered to provide services as requested by Flagler County School Board. As such, I hereby authorize Flagler County School Board to obtain the information necessary to verify the information provided in the RFQ submittal and concerning my professional standing and reputation.

As evidenced by my signature, I certify that this offer is made without prior understanding, agreement, or connection with any corporation, Respondent, business or person submitting an offer for the same materials, supplies, equipment, or services, and is in all respects fair and without collusion or fraud. I further agree to abide by all conditions of this invitation, school board rules, policies and procedures and certify that I am authorized to sign this response. Upon approval by the School Board, the information contained herein shall constitute the contract between the School Board and contractor.

I authorize Flagler County School Board and its authorized personnel to disclose the information provided in our application to designated personnel of other federal, state, or municipalities in the State of Florida. With the proper consent, purchases may be made under this RFQ by other governmental agencies within the State of Florida. Such purchases shall be governed by the same terms and conditions as stated herein.

I further declare that we have examined the requirements and specifications for the materials to be furnished and have read all provisions prior to the submission of the response. I acknowledge that I have read, understand and agree to the terms and conditions stated in this RFQ.

If my submittal is accepted, I agree to contract with the Flagler County School Board to deliver the services requested.

Respondent Name

Authorized Signature



Attachment L

Prohibition Against Contingent Fees

In accordance with Florida Statute 287.055(6)(a), the following statement, duly signed and notarized, must be included in each submittal:

The Respondent, _____, warrants that he or she has not employed or retained any company or person, other than a bona fide employee working solely for the respondent to solicit or secure this agreement and that he or she has not paid or agreed to pay any person, company, corporation, individual, or firm, other than a bona fide employee working solely for the respondent any fee, commission, percentage, gift, or other consideration contingent upon or resulting from award or making of this agreement.

Authorized Signature

Notary Public

State of: _____ County of: _____

The foregoing instrument was acknowledged before me this ____ day of _____ 20__ by _____.

Notary Public Signature: _____

Commission Expires: _____

(Seal)

Personally Known _____ or Produced Identification _____

Type of Identification Produced _____



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Attachment M

Respondent's Reference Form

List (2) two clients for projects **currently under service**, or completed within the **last 12 months**:

Reference # 1

Nature of the Respondent's responsibility on the engagement: _____

Size of engagement: (in \$) _____

Client Name: _____

Client Address: _____

Client Contact: _____ Client Contact Job Title: _____

Email Address _____

Phone #: _____ Start Date: _____

Completion Date: (if in progress: percent completed) _____

Present status of engagement: _____

Description of Project: _____

Comments: _____

Reference #2

Nature of the Respondent's responsibility on the engagement: _____

Size of engagement: (in \$) _____

Client Name: _____

Client Address: _____

Client Contact: _____ Client Contact Job Title: _____

Email Address _____

Phone #: _____ Start Date: _____

Completion Date: (if in progress: percent completed) _____

Present status of engagement: _____

Description of Project: _____

Comments: _____

List (3) clients for whom you have provided services in the **past five years**:

Reference # 3

Nature of the Respondent's responsibility on the engagement: _____

Size of engagement: (in \$) _____

Client Name: _____

Client Address: _____

Client Contact: _____ Client Contact Job Title: _____

Email Address _____

Phone #: _____ Start Date: _____

Completion Date: (if in progress: percent completed) _____

Present status of engagement: _____

Description of Project: _____

Comments: _____

Reference # 4

Nature of the Respondent's responsibility on the engagement: _____

Size of engagement: (in \$) _____

Client Name: _____

Client Address: _____

Client Contact: _____ Client Contact Job Title: _____

Email Address _____

Phone #: _____ Start Date: _____

Completion Date: (if in progress: percent completed) _____

Present status of engagement: _____

Description of Project: _____

Comments: _____

Reference # 5

Nature of the Respondent's responsibility on the engagement: _____

Size of engagement: (in \$) _____

Client Name: _____

Client Address: _____

Client Contact: _____ Client Contact Job Title: _____

Email Address _____

Phone #: _____ Start Date: _____

Completion Date: (if in progress: percent completed) _____

Present status of engagement: _____

Description of Project: _____

Comments: _____



Attachment N
Financial Affirmation

This form is to be signed by both the Respondent and CPA/Accountant that prepared the Firm's most recent annual financial statement and must be submitted with your response package.

Respondent's Name: _____

Name/Firm of CPA/Accountant: _____

This Section requires completion fully by your CPA/Accountant.

Per the Firms' most recent financial/statement as their CPA/Accountant we have defined below their:

1. Which year of the most recent annual financial statement information is being derived from? _____
2. The Respondent reported a net after tax profit during that year? ☐ Yes ☐ No
3. The Respondent's total current liabilities are? _____
4. The Respondent's total current assets are? _____

"CPA/Accountant"

Signature: _____

Name: _____

Title: _____

Date: _____

"Respondent"

Signature: _____

Name: _____

Title: _____

Date: _____